

IRBC Properties, LLC v. Larry Foster

21CV45174

DEMURRER TO FIRST AMENDED COMPLAINT

Defendant Larry Foster specially demurs to the First Amended Complaint on the grounds that “the Plaintiff originally named in the Original Complaint and Summons has no Capacity to Sue because it is a foreign Delaware LLC that is not registered with the California Secretary of State to do business in California, and therefore also does not have Capacity and/or Standing simply to amend to add another Plaintiff, especially without a motion required by Rule of Court 8.36.”

Plaintiff’s request for judicial notice is GRANTED. The Court takes judicial notice of the subject matters thereof.

The gravamen of Defendant’s demurrer is that the entire action must be dismissed because the original Plaintiff was not the real party in interest, and further because the original Plaintiff lacked the capacity to maintain an action in California. (See Demurrer at 2:15-22.)

The Court finds that the identification of Plaintiff IRBC Properties 2, LLC as “IRBC Properties, LLC” in the original Complaint was the result of a scrivener’s error. Upon becoming aware of the error, Plaintiff filed the First Amended Complaint correcting it. Based on the foregoing, the Court concludes that the First Amended Complaint did not result in a substitution of parties, and did not, therefore, require compliance with Rule of Court 8.36. The filing of the First Amended Complaint, prior to the filing of an answer, demurrer, or motion to strike by Defendant, was proper pursuant to Code of Civil Procedure section 472 (a).

Based on the foregoing, the demurrer is OVERRLUED. Defendant has 10 days to answer or otherwise respond to the Complaint. (See Rule of Court 3.1320 (j).)

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to Rule of Court 3.1312, in conformity with this ruling.